

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cloey Romans	Team: Squad #15	CCRB Case #: 202103010	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 05/15/2021 2:10 AM	Location of Incident: 96th Street (1,2,3) Subway Station, mezzanine level	18 Mo. SOL 11/15/2022	Precinct: 24		
Date/Time CV Reported Tue, 05/18/2021 1:10 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 05/18/2021 1:10 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Tian Jiang	24535	967127	TB DT03
2. PO Sanalkumar Bhargaviamma	16977	936203	TB DT03

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Tian Jiang	Abuse: Police Officer Tian Jiang stopped § 87(2)(b)	A . Substantiated
B . PO Sanalkumar Bhargaviamma	Abuse: Police Officer Sanalkumar Bhargaviamma stopped § 87(2)(b)	B . Substantiated
C . PO Tian Jiang	Abuse: Police Officer Tian Jiang stopped § 87(2)(b)	C . Substantiated
D . PO Sanalkumar Bhargaviamma	Abuse: Police Officer Sanalkumar Bhargaviamma stopped § 87(2)(b)	D . Substantiated
E . PO Tian Jiang	Abuse: Police Officer Tian Jiang issued an unlawful summons to § 87(2)(b)	E . Substantiated
F . PO Tian Jiang	Abuse: Police Officer Tian Jiang issued an unlawful summons to § 87(2)(b)	F . Substantiated
G . PO Tian Jiang	Off. Language: Police Officer Tian Jiang made remarks to § 87(2)(b) based upon race.	G . Substantiated
H . PO Tian Jiang	Discourtesy: Police Officer Tian Jiang spoke discourteously to § 87(2)(b)	H . Substantiated
I . PO Sanalkumar Bhargaviamma	Off. Language: Police Officer Sanalkumar Bhargaviamma made remarks to § 87(2)(b) based upon race.	I . Unsubstantiated
J . PO Sanalkumar Bhargaviamma	Discourtesy: Police Officer Sanalkumar Bhargaviamma spoke discourteously to § 87(2)(b)	J . Unsubstantiated
K . PO Tian Jiang	Abuse: Police Officer Tian Jiang refused to provide his name to an Individual.	K . Substantiated
L . PO Tian Jiang	Abuse: Police Officer Tian Jiang refused to provide his shield number to an Individual.	L . Substantiated

Case Summary

On May 18, 2021, § 87(2)(b) submitted this complaint to the Civilian Complaint Review Board via their online website.

At approximately 2:10 a.m. on May 15, 2021, Police Officers Tian Jiang and Sanalkumar Bhargaviamma of Transit Bureau District 3 stopped § 87(2)(b) and § 87(2)(b) at the 96th Street Subway Station, Manhattan, after observing § 87(2)(b) and § 87(2)(b) carrying brown paper bags believed to contain open containers of alcohol (**Allegations A, B, C, and D: Abuse of Authority – Substantiated**). While issuing § 87(2)(b) and § 87(2)(b) summonses (**Allegations E and F: Abuse of Authority – Substantiated**) and while handing them back their identification, PO Jiang told § 87(2)(b) and § 87(2)(b) “You all look the same” (**Allegations G and H: Offensive Language and Discourtesy – Substantiated**) and PO Bhargaviamma allegedly said, “There must be something wrong with your people and your culture”, (**Allegations I and J: Offensive Language and Discourtesy – Unsubstantiated**). During this time, an unidentified individual approached the officers and observed their interaction with § 87(2)(b) and § 87(2)(b). After the officers completed the summonses for § 87(2)(b) and § 87(2)(b) the subway station closed, and PO Jiang and PO Bhargaviamma ejected the unidentified individual from the station and followed him outside. Once outside, the officers engaged in a conversation with the individual, § 87(2)(b) and § 87(2)(b). The unidentified civilian asked PO Jiang for his name and badge number, which he did not provide (**Allegations K and L: Abuse – Substantiated**). Following this interaction, the individual, § 87(2)(b) and § 87(2)(b) left the incident location and had no further contact with the officers.

No arrests were made. § 87(2)(b) and § 87(2)(b) both received summonses for open containers (Board Review 14). No other summonses were issued.

Two cell phone videos were obtained from § 87(2)(b) and have been linked to the case file in IA #37 (Board Review 07). Six BWC videos were yielded, which are linked in IA #57 of the case file (Board Review 05). MTA footage was yielded for the 96th Street Subway station and is linked in the case file under IAs #77 and #80 (Board Review 06 and 15).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Tian Jiang stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Sanalkumar Bhargaviamma stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Tian Jiang stopped § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Sanalkumar Bhargaviamma stopped

§ 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Tian Jiang issued an unlawful summons to

§ 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Tian Jiang issued an unlawful summons to

§ 87(2)(b)

§ 87(2)(b) provided a statement on May 21, 2021. § 87(2)(b) declined to provide a statement. MTA employees § 87(2)(b) and § 87(2)(b) were contacted as witnesses for the investigation, though they were in different areas of the subway station during the incident and did not see this interaction. No other civilians or witnesses were identified. PO Jiang and PO Bhargaviamma were both interviewed on July 12, 2021.

It is undisputed that PO Jiang and PO Bhargaviamma stopped § 87(2)(b) and § 87(2)(b) then issues them two summonses for open containers of alcohol without ever verifying or seeing the alleged alcoholic beverages.

§ 87(2)(b) stated that he and § 87(2)(b) arrived at the 96th Street Subway station on the morning of May 15th after having visited bars in lower Manhattan. Before boarding the train downtown and traveling north, § 87(2)(b) purchased a can of Arizona Iced Tea, which was placed in a brown paper bag, and § 87(2)(b) consumed it while on the train. § 87(2)(b) believed § 87(2)(b) had done the same but did not verify his purchase. Upon arriving at the 96th Street station, § 87(2)(b) and § 87(2)(b) exited the train and ascended the staircase to ground level to exit the station. Once at the top of the stairs, § 87(2)(b) observed PO Bhargaviamma issuing a summons to an unknown white male who appeared to be holding a bottle of beer. § 87(2)(b) proceeded to exit the station when PO Jiang approached him and asked him to reenter the station. § 87(2)(b) then threw away his iced tea in a trash can outside and reentered the station with PO Jiang, where he saw § 87(2)(b) speaking to PO Bhargaviamma in the mezzanine. § 87(2)(b) and PO Jiang approached § 87(2)(b) and PO Bhargaviamma, then the officers took § 87(2)(b) and § 87(2)(b) IDs and began issuing each a summons for open containers of alcohol. Neither officer saw the contents of § 87(2)(b) brown paper bag before or after he threw it out. § 87(2)(b) did not hear either officer ask to see what was inside § 87(2)(b) brown paper bag (Board Review 01).

PO Jiang and PO Bhargaviamma stated they stopped § 87(2)(b) and § 87(2)(b) after PO Jiang had observed the two men exit the subway station each carrying an unknown beverage in brown paper bags. Neither officer confirmed the contents of the bags but stated they believed it was alcohol because of the size and shape, time of occurrence, and that § 87(2)(b) and § 87(2)(b) smelled of alcohol after being stopped. Neither officer asked to see what was in the bags and did not make any direct observation of § 87(2)(b) and § 87(2)(b) with open containers of alcohol (Board Review 03 and 04).

Cellphone video obtained from § 87(2)(b) does not contain any portion of the incident prior to the issuance of summonses and does not contain any footage illustrating the contents of § 87(2)(b) and § 87(2)(b) brown paper bags (Board Review 07).

BWC video captured from PO Jiang and PO Bhargaviamma does not capture either the brown paper bags or the beverages that § 87(2)(b) and § 87(2)(b) had been carrying. The video captures the officers speaking with § 87(2)(b) and § 87(2)(b) then PO Jiang proceeds to issue both men summonses. At no point is alcohol or an alcoholic beverage seen in the BWC videos (Board Review 05).

MTA footage capturing the turnstiles of the 96th Street Subway station captures § 87(2)(b) and § 87(2)(b) speaking with the officers, but neither can be seen holding a brown paper bag or beverage (Board Review 06 and 15).

The memo book for PO Bhargaviamma notes that at 01:55 a.m., he issued an Open Container summons to an individual holding a “12 FL OZ. Victoria beer” in the subway mezzanine. This summons is for an individual whom the officers stopped before § 87(2)(b) and § 87(2)(b). The memo book entry for § 87(2)(b) and § 87(2)(b) summonses, which was made by PO Jiang, states “X2 for open container” without a notation of alcoholic type or container (Board Review 16 and 17).

The narrative portion for the summons § 87(2)(b) received reads, “At TPO PO observed respondent with open container at 96 street” and was issued by PO Jiang (Board Review 14).

People v. De Bour, 40 N.Y.2d 210 found that to stop a person, a police officer must have reasonable suspicion that the person has committed, is committing, or is about to commit a crime. De Bour also details that the police may not justify a stop by a subsequently acquired suspicion resulting from the stop and the court has frequently rejected the notion that behavior, which is susceptible of innocent as well as culpable interpretation, will constitute probable cause (Board Review 18).

The De Bour level of stops is canonized in NYPD Patrol Guide 212-11 (Board Review 19).

PO Jiang and PO Bhargaviamma admitted that they stopped § 87(2)(b) and § 87(2)(b) after observing them exit the subway with brown paper bags but did not see what was in the bags. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A, B, C and D be Substantiated.**

NYC Administrative Code § 10-125 details the parameters for the prohibited consumption of alcohol on streets, defining an ‘alcoholic beverage’ as “any liquid intended for human consumption containing more than one-half of one percent (.005) of alcohol by volume and that no person shall drink or consume an alcoholic beverage, or possess, with intent to drink or consume, an open container containing an alcoholic beverage in any public place, unless a permit has been obtained (Board Review 20).

People v Figueroa, 36 Misc. 3d 605 establishes that information that does not meet the prima facie, or first impression, case requirement is jurisdictionally defective and mandates dismissal of the charges in incidents of open container violations. Figueroa sets a precedent that an officer’s belief that an unlabeled or unverified container is alcoholic in nature is not sufficient to justify a violation of NYC Administrative Code § 10-125 as the possibility that the liquid is under .005 percent exists (Board Review 21).

It is undisputed that neither PO Jiang nor PO Bhargaviamma observed the contents of § 87(2)(b) or § 87(2)(b) brown paper bags at any point during the incident and never verified whether the bags contained alcoholic beverages. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations E and F be Substantiated.**

Allegation (G) Offensive Language: Police Officer Tian Jiang made remarks to § 87(2)(b) based upon race.

Allegation (H) Discourtesy: Police Officer Tian Jiang spoke discourteously to § 87(2)(b)

Allegation (I) Offensive Language: Police Officer Sanalkumar Bhargaviamma made remarks to § 87(2)(b) based upon race.

Allegation (J) Discourtesy: Police Officer Sanalkumar Bhargaviamma spoke discourteously to § 87(2)(b)

It is undisputed that PO Jiang told § 87(2)(b) and § 87(2)(b) “You all look the same.”

After § 87(2)(b) and § 87(2)(b) had been stopped, an argument ensued between them and the officers. PO Jiang asked § 87(2)(b) and § 87(2)(b) for their identification, which they provided, then PO Jiang issued them both summonses. After completing the summonses, PO Jiang returned the IDs and asked, “Which one of you is § 87(2)(b) and § 87(2)(b) replied, “Can’t you tell? You have our IDs.” PO Jiang replied, “I don’t know, you all look the same to me.” PO Bhargaviamma then stated, “You guys have to go to school, you got to get a better education” and “There must be something wrong with your people and your culture.” § 87(2)(b) interpreted both officers’ remarks to be directed at him and § 87(2)(b) Hispanic race. The officers completed the summonses and then told § 87(2)(b) and § 87(2)(b) to exit the station as it was now closed. Both men complied and proceeded to exit the station with an unknown black male civilian who had been watching the interaction (Board Review 01).

MTA footage captures § 87(2)(b) and § 87(2)(b) engaging in a conversation with the officers, but there is no audio or discernable dialogue. § 87(2)(b) and § 87(2)(b) can be seen exiting the station while the unknown civilian remains speaking to the officers (Board Review 02).

PO Jiang and PO Bhargaviamma stated that upon stopping § 87(2)(b) and § 87(2)(b) they began issuing summons to the men for open containers. Neither officer recalled what specifically § 87(2)(b) or § 87(2)(b) were saying or doing during this time, but both officers stated the men were using offensive language. Jiang stated he had told § 87(2)(b) and § 87(2)(b) that “You all look alike” when returning their IDs, but this was about the New York state IDs themselves looking similar, not the men. PO Jiang did not recall how either § 87(2)(b) or § 87(2)(b) responded. PO Bhargaviamma alleged that § 87(2)(b) told the officers to “suck my dick,” to which PO Bhargaviamma replied, “That’s good culture.” PO Bhargaviamma explained that this was directed at § 87(2)(b) remark being uncivil, but not related to culture or ethnicity. PO Bhargaviamma denied ever saying anything to § 87(2)(b) or § 87(2)(b) regarding education or Hispanic culture, and PO Jiang denied ever hearing PO Bhargaviamma say anything regarding education or Hispanic culture. Neither officer recalled any further details of their conversation with § 87(2)(b) and § 87(2)(b) while within the station and stated that § 87(2)(b) and § 87(2)(b) proceeded outside after obtaining their summonses (Board Review 03 and 04).

BWC videos of PO Jiang and PO Bhargaviamma capture PO Jiang returning § 87(2)(b) and § 87(2)(b) IDs to them, embedded at the 02:20:02 timestamps. Upon returning the IDs, PO Jiang says, “Which one of you is § 87(2)(b) and § 87(2)(b) replies, “You can’t tell us apart?” PO Jiang says, “You all look the same to me,” then hands the men their summonses. Both Jiang and PO Bhargaviamma’s BWC cameras are then immediately deactivated, and no further interaction is captured (Board Review 05).

According to NYPD Patrol Guide Procedure 200-02 the mission of the New York City Police Department, members of service are instructed to treat citizens with courtesy and professionalism. This procedure also states that one of the primary values of the NYPD is to respect the dignity of individuals and provide police services with civility and courtesy. Furthermore, according to Patrol Guide Procedure 203-10, members of service are explicitly prohibited from using discourteous language or disrespectful remarks regarding another person’s ethnicity and/or race (Board Review

22 and 23).

It is undisputed that PO Jiang told § 87(2)(b) and § 87(2)(b) “You all look the same.” § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations G and H be Substantiated.**

While it is evident that § 87(2)(b) and § 87(2)(b) engaged in a conversation with PO Bhargaviamma regarding culture, the context and verbiage remains in dispute. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations I and J be Unsubstantiated.**

Allegation (K) Abuse of Authority: Police Officer Tian Jiang refused to provide his name to an individual.

Allegation (L) Abuse of Authority: Police Officer Tian Jiang refused to provide his shield number to an individual.

It is undisputed that an unidentified individual asked PO Jiang for his name and badge number on May 15, 2021, and neither was provided by the officer.

Once outside the station and after it had closed, PO Jiang and PO Bhargaviamma approached § 87(2)(b) and the unknown individual who were standing and speaking to one another in the public mezzanine in front of the subway station. PO Jiang and PO Bhargaviamma engaged in a verbal dispute with § 87(2)(b) and the individual regarding the prior discourteous statements. The individual then asked PO Jiang for his name and shield number, to which PO Jiang ignored the questions and did not respond. After the approximately five-minute verbal dispute, § 87(2)(b) and the individual left the station and went to their individual homes. There was no further police interaction or summonses issued (Board Review 05).

The individual’s identity was unable to be obtained during the investigation and therefore a statement was not obtained from him. Neither § 87(2)(b) nor either officer could provide any insight into the individual’s identity. No supporting police documentation was prepared which name’s the individual.

MTA footage captures the unknown individual speaking to the officers inside the station until he is ejected by the officers at the 01:29:11 mark and followed outside by PO Bhargaviamma and PO Jiang (Board Review 06).

Cell phone video captured by § 87(2)(b) shows the individual asking PO Jiang for his badge number at 00:00:13, which the officer does not respond to despite looking directly at the individual

when it is asked. Between 00:00:27 and 00:00:53, the individual asks § 87(2)(b) five times to capture PO Jiang's badge number, which § 87(2)(b) ultimately confirms he has done after the fifth request. During that window, PO Jiang does not verbally acknowledge the multiple attempts of the individual to obtain his name and badge number (Board Review 07).

PO Jiang stated that his understanding of police protocol is that if an officer's name and badge number are visible, an officer does not need to verbally provide them if requested. PO Jiang stated that because of this, and because his name was on the summonses issued to § 87(2)(b) and § 87(2)(b) he did not need to provide verbally his name and badge number when requested to do so on the incident date. PO Jiang stated that he recalled the unknown individual requesting his name and badge number, but because the individual was looking at his badge when he asked, PO Jiang did not provide it to him. PO Jiang confirmed he did not verbally provide his name or badge number to the individual despite knowing it had been requested (Board Review 04).

Captured in two separate Body-worn Camera videos, that of PO Bhargavamma and PO Jiang, the officers engage in a conversation with § 87(2)(b) and the individual outside of the 96th Street Subway Station. Time-stamped in both videos at 02:27:01, the individual asks PO Jiang for his name, to which PO Jiang does not respond. At 02:27:16, the individual asks PO Jiang for his name again and his badge number twice, which the officer does not respond to. The individual attempts to read PO Jiang's name from his badge and struggles to do so, asking PO Jiang how it is pronounced, which the officer again does not respond to. After failing to obtain PO Jiang's name and badge number himself, the individual then requests that § 87(2)(b) capture the officer's badge number with his cellphone, which § 87(2)(b) ultimately states that he had done at 02:27:58 (Board Review 05).

According to Patrol Guide procedure 203-09, officers must courteously and clearly state their rank, name, shield number, and command, or otherwise provide them, to anyone who requests they do so (Board Review 08).

The Patrol Guide explicitly details the protocol for an officer when an individual requests their name or badge number. § 87(2)(g)

Therefore, it is recommended that **Allegations K and L be Substantiated.**

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 09).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 10).
- PO Jiang has been a member of service for three years and has been a subject in three CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
- PO Bhargavamma has been a member of service for 17 years and has been a subject in three CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)

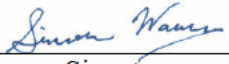
Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.

- As of March 7, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review 13).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

Squad: 15

Investigator:	<u>Cloey Romans</u>	<u>Inv. Cloey Romans</u>	<u>6/27/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u></u>	<u>IM Simon Wang</u>	<u>06/27/22</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date